(c) *Assurances from applicant.* * * *

(1) That actual construction work will be performed by the lump sum (fixed price) contract method, that adequate methods of obtaining competitive bidding will be or have been employed prior to awarding the construction contract, either by public advertising or circularizing three or more bidders, and that the award of the contract will be or has been made to the responsible bidder submitting the lowest acceptable bid: *Provided, however,* That the purchase and installation of equipment which is unique to a hospital, as well as kitchen, laundry, laboratory, and pharmacy equipment, need not be considered construction work for the purpose of this section.

4. Effective December 17, 1948, paragraph (b) of § 53.79 is amended by deleting the fourth and fifth sentences so that the paragraph reads as follows:

§ 53.79 *Fiscal and accounting requirements.* * * *

(b) *Construction payments.* Where the State may receive Federal funds for applicants for construction project grants, or the State itself is an applicant, adequate records of account and fiscal controls shall be established and maintained by the State to assure proper accounting of all funds received and disbursed. Similar suitable accounts shall be maintained to show the receipt and disbursement of State, local, or other funds used for matching purposes.

The State Agency shall require that applicants receiving Federal funds establish and maintain adequate accounting and fiscal records to reflect the receipt and expenditure of funds allotted and paid for construction projects.

The States which by law are authorized to make payments to applicants shall promptly pay such applicants funds certified for payment by the Surgeon General for approved construction projects.

The above amendments were approved by the Federal Hospital Council at a meeting held December 17, 1948.

(Sec. 622, Pub. Law 725, 79th Cong., 60 Stat. 1042; 42 U. S. C. Supp. 291e)

[SEAL] LEONARD A. SCHEELE,
Surgeon General.

Approved:

LEONARD A. SCHEELE,
Chairman, Federal Hospital Council.

Approved: March 3, 1949.

J. DONALD KINGSLEY,
Acting Federal Security Administrator.

[F. R. Doc. 49-1793; Filed, Mar. 9, 1949; 8:52 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 569]

NEW MEXICO

AMENDING EXECUTIVE ORDER NO. 6797 BY WITHDRAWING ADDITIONAL PUBLIC LANDS THEREUNDER

By virtue of the authority contained in the act of June 25, 1910, 36 Stat. 847, as amended by the act of August 24, 1912, 37 Stat. 497 (43 U. S. C. 141–143), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, Executive Order No. 6797 of July 27, 1934 is hereby amended by adding the following described public lands to the public lands withdrawn thereby, subject to the same terms and conditions and for the same purposes:

NEW MEXICO PRINCIPAL MERIDIAN

T. 20 S., R. 29 E.,
Sec. 22, SE¼;
Sec. 23, S½N½, S½;
Sec. 24, S½;
Sec. 25.

The area described contains 1,600 acres.

This order shall take precedence over, but not modify, (1) the order of the Secretary of the Interior, dated February 6, 1939 (4 F. R. 1012), withholding certain lands in New Mexico from application or lease under the oil and gas provisions of the act of February 25, 1920 (40 Stat. 437), as amended, and (2) the Executive Order of March 11, 1926, Potash Reserve No. 6, New Mexico No. 1, withdrawing lands for classification and in aid of legislation, in so far as such orders affect any of the lands herein described.

J. A. KRUG,
Secretary of the Interior.

MARCH 2, 1949.

[F. R. Doc. 49-1772; Filed, Mar. 9, 1949; 8:45 a. m.]

[Public Land Order 570]

NEVADA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 7373 OF MAY 20, 1936

By virtue of the authority vested in the President by the act of June 25, 1910, 36 Stat. 847, as amended by the act of August 24, 1912, 37 Stat. 497 (43 U. S. C. 141–143), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 7373 of May 20, 1936, establishing the Desert Game Range in Nevada is hereby revoked as to the following-described land:

MOUNT DIABLO MERIDIAN

T. 21 S., R. 58 E.,
Sec. 35, SW¼.

The area described contains 160 acres.

MASTIN G. WHITE,
Acting Assistant Secretary of the Interior.

MARCH 2, 1949.

[F. R. Doc. 49-1774; Filed, Mar. 9, 1949; 8:46 a. m.]

PROPOSED RULE MAKING

SECURITIES AND EXCHANGE COMMISSION

[17 CFR, Part 240]

REGISTRATION OF UNISSUED SECURITIES FOR "WHEN ISSUED" DEALING

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the Securities and Exchange Commission has under consideration a proposal for the amendment of § 240.12d3–10 (Rule X-12D3–10) under sections 12 (d) and 23 (a) of the Securities Exchange Act of 1934.

Rule X-12D3–10 is one of several rules under section 12 (d) of the act providing for the registration of unissued securities for "when-issued" trading on a national securities exchange. Rule X-12D3–10 now applies only to securities (other than warrants) to be issued in railroad reorganizations, and the general provisions relating to the registration of other unissued securities are contained in other rules under the same section, particularly Rule X-12D3–4.

The primary effect of the proposed amendment would be to expand the coverage of Rule X-12D3–10 so that it would no longer be limited to securities to be issued in railroad reorganizations but would extend generally to securities (other than warrants) to be issued in other types of reorganizations: *Provided,* That the reorganization is carried out with court approval or under compulsion of a court order. Thus the rule if amended could afford an alternative basis for registration of securities to be issued under a court-approved plan of reorganization under Chapter X of the Bankruptcy Act or section 11 (e) of the Public Utility Holding Company Act of 1935 or under a reorganization required by an anti-trust decree.

The conditions that must be complied with to register a security under Rule X-12D3–4 are somewhat different from those prescribed in the present Rule X-12D3–10 because the former rule was drafted with a view to registration of unissued securities generally while the latter was drafted to cover railroad reorganizations under court control. The significance of the proposed amendment to Rule X-12D3–10 is that it would make the provisions of the rule applicable to some additional types of reorganizations resulting from court action. The primary differences between Rule X-12D3–4 and Rule X-12D3–10 are set forth below.